NGONIDZASHE KUSINIRA
versus
GOLDEN CRUST BAKERIES (PRIVATE) LIMITED
and
MR JUSTICE J KACHAMBWA

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE; 8 October 2025 & 11 May 2026

Opposed Court Application – Review of Labour Court Decision

R. Munatsi, for the applicant
E. Matsanura, for the 1st respondent

MUSITHU J:

1. The applicant approached the court for the review of the Labour Court proceedings held at Harare on 3 June 2025 under LCH478/25, before KACHAMBWA J. The application was made in terms of s 171(1)(b) as read with s 174 of the Constitution of Zimbabwe. The application was motivated on the grounds that, firstly, the Labour Court did not have jurisdiction to grant a stay of execution in that matter, and secondly, that there were gross procedural irregularities which vitiated the entire proceedings.

2. Consequently, the applicant prayed for an order to the effect that: the interim suspension of execution of the order under LCH 1021/23 made by the second respondent in LCH478/25 be set aside; all benefits accrued to any party to the interim order under LCH 478/25 be reversed; the first respondent bears the costs of suit.

The Applicant's Case

3. The applicant claimed that he was unfairly dismissed by the first respondent after a disciplinary hearing. Aggrieved by the outcome, he appealed to the Labour Court under LCH 1021/23. The appeal was served on the respondents, but they wilfully defaulted court, and a default judgment was granted in his favour. The applicant served a copy of the court order on the first respondent's legal practitioners on 29 January 2025, in line with the instructions that had been communicated by the said legal practitioners in their letter of 29 January 2025.

4. Following the refusal by the first respondent refused to reinstate him, the applicant proceeded to apply for quantification of damages under LCH 185/24. The application was opposed by the first respondent. The said respondent also proceeded to apply for rescission of the default judgment under LCH 291/24 on 25 March 2024.

5. The applicant averred that in terms of the rules of the Labour Court, the respondent had 21 days from 29 January 2024 to apply for rescission of the default judgment. Those 21 days lapsed on 26 February 2024. The applicant therefore needed to approach the court for condonation for the late filing of the application for rescission of judgment. In the absence of a condonation, it followed that there was no valid application for rescission of default judgment pending before the court.

6. The applicant opposed the application. The first respondent did not pursue the application, and it was deemed abandoned and dismissed by the registrar. The quantification proceedings were concluded, and the first respondent was ordered to pay the sum of US$43,523.00 in damages. The applicant registered the order with the Magistrates Court for enforcement purposes, and a warrant of execution was duly issued.

7. Meanwhile, the first respondent applied for reinstatement of the dismissed application for rescission of default judgment under LCH 723/24. The application was opposed. It was deemed abandoned and the registrar dismissed it.

8. The applicant claimed that the first respondent fraudulently obtained an order for condonation of late noting of an application for reinstatement of an application for rescission of default judgment. The applicant further claimed that the first respondent erroneously or mischievously interpreted it as an order for reinstatement and to that end, they requested the registrar to reinstate their application of reinstatement of the dismissed application for rescission of default judgment.

9. On 3 June 2025, the first respondent made an urgent chamber application for stay of execution of LCH 1021/24 in terms of s 93(c)(3)(b) of the Labour Act [*Chapter 28:01*] (hereafter referred to as the Act). The applicant averred that the first respondent made an application for stay of execution pending rescission, when there was no such pending application for rescission. The said application was served on the applicant's legal practitioners on the same day.

10. The applicant and his legal practitioners tried to log into the IECMS in order access the case, but they failed to do so owing to network challenges. The applicant approached the

registrar's office and was assisted in logging onto the system. Notifications showed that the matter was pending before a judge. There was however no notification advising of the set down of the matter. There was yet another notification which showed that the matter was being heard, and an order had been granted. The applicant claimed that he was never informed of the set down. He also claimed that he was within the court house when the hearing was being conducted.

11. The applicant averred that his right to be heard was violated. An order was made suspending execution of a court order which resulted in the recall of warrants of execution that had been issued out of the Magistrates Court. The warrants had resulted in the attachment in execution of the first respondent's rights to funds held by its bankers in January 2025. The attaching bankers had issued a no debit order on those accounts as they awaited a court order for releasing the funds.

12. The applicant averred that had he been allowed to exercise his right to be heard, he would have demonstrated that the court lacked jurisdiction to determine the matter because:

a) There was no pending application for rescission. The application that the first respondent had set down for reinstatement was a nullity as it was filed out of time without condonation. (See Annex C1)
b) The purported application had been dismissed by the registrar for abandonment.
c) The application for reinstatement had been erroneously set down in the absence of an order reinstating it. The only order available was one for condonation and not reinstatement. It therefore remained dismissed.
d) In the circumstances, the jurisdiction of the Labour Court could not be invoked.
e) The matter was not urgent because the first respondents were aware since January 2025 that their bank accounts had been placed under judicial attachment. The affidavit of the first respondent filed in the Magistrates Court in March 2025 under HRE C-CG2344/24 confirmed that the party was aware of the attachment of its bank account.

13. The application was only opposed by the first respondent.

The First Respondent's Case

14. The first respondent argued that the Labour Court had the jurisdiction to hear the urgent chamber application for stay of execution in terms of s 92(C)(3) of the Act, as read with r

41 of the Labour Court Rules, 2017. Further r 32(a) of the same rules permitted a departure from the rules of the court including the extension of any period specified in the rules.

15. The first respondent also averred that there was nothing amiss in the second respondent dealing with the matter in the absence of the applicant. The court had the power to deal with a matter in the manner it considered appropriate, including dispensing with the issue of the service of the application. In any event, the court considered the matter on the basis of the papers filed by the parties.

16. The first respondent also wondered why the applicant was averse to having the matter considered on the merits by holding on to a default judgment. The court would not have hesitated to stay execution of a judgment obtained out of a process that was a nullity from which nothing should have flowed in the first place. The court was urged to dismiss the application with an order of costs on the punitive scale.

Submissions and analysis of the preliminary point on absence of jurisdiction

17. Mr *Matsanura* for the first respondent submitted that the order that the applicant wanted reviewed was a provisional order intended to provisionally stay execution pending the hearing of the urgent chamber application. The present application would have been properly before the court if the order sought to be reviewed was final in nature. The court order itself was not even part of the record.

18. Counsel further submitted that in terms of the Act, the Labour Court had the same review powers as the High Court. It was therefore improper for the High Court to review a Labour Court decision because it would be tantamount to having the High Court reviewing its own decision. It was further submitted that the applicant ought to have approached the Supreme Court in terms of s 25(1) of the Supreme Court Act [*Chapter 7:13*]. That provision confers review powers on the Supreme Court. It was argued that the present application was therefore improperly before the court.

19. In reply to the first respondent's submissions, Ms *Munatsi* submitted that there was nothing irregular about approaching this court for a review of the order of the Labour Court even if it was provisional. No leave was required in terms of the Act or the rules of that court. Ms *Munatsi* further submitted that section 171(1)(b) of the Constitution conferred on this court the jurisdiction to review decisions of subordinate courts.

20. The court determines that the preliminary point is without merit. The preliminary point as submitted in oral submissions was in two parts. The first point was that the present application was improperly before the court because the High Court and the Labour Court enjoyed the same review powers. The High Court could therefore not review decisions of the Labour Court.

21. Section 89(10(d1) of the Act provides that the Labour Court shall exercise the same powers of review as would be exercisable by the High Court in respect of labour matters. Section 171(1)(b) of the Constitution states that the High Court has jurisdiction to supervise magistrates' courts and other subordinate courts and to review their decisions. Section 174(2) of the Constitution deals with "other courts and tribunals". It states as follows:

> "(2) For the purposes of this section and section 171(1)(b), it is declared for the avoidance of doubt that the Labour Court and Administrative Court are courts subordinate to the High Court." (Underlining for emphasis)

22. Two critical points emerge from the above cited provisions of the Labour Act and the Constitution of Zimbabwe. The first point is whether the High Court enjoys the same review powers as the Labour Court in respect of labour matters. It follows that while the Labour Court enjoys exclusive jurisdiction in respect of labour matters, that same jurisdiction is enjoyed by the High Court to the extent of the review of labour matters. The second point is that the High Court is clothed with jurisdiction to supervise subordinate courts as well as review their decisions. Section 174(2) of the Constitution goes on to state that for the avoidance of doubt, the Labour Court is one such court subordinate to the High Court.

23. Once it is accepted that the Labour Court is subordinate to the High Court, then it stands to reason that the decisions of the Labour Court are subject to review by the High Court by operation of s 174(2) of the Constitution. The mere fact that the Labour Court enjoys the same review powers as the High Court in respect of labour matters, does not place the Labour Court on a par with the High Court. The two courts may enjoy the same review powers, but that does not accord the Labour Court concurrent jurisdiction with the High Court. It remains a court subordinate to the High Court and thus making its decisions susceptible to review by the High Court.

24. The second point was whether this court was being invited to review what was essentially a provisional order, instead of a final order. The first respondent's counsel did

not go on to demonstrate how the present application was offended by the nature of the order that the applicant wanted reviewed. The order that the applicant approached the court for review was the one granted on 3 June 2025 under LCH 478/25. It is phrased as follows:

> "The execution of the default order be and is hereby suspended pending the finalisation of the urgent chamber application"

25. The way the order was phrased leaves the court in no doubt that it was for all intents and purposes a final order whose effect was to suspend execution pending the determination of the urgent chamber application. There was no return date to talk of. It was not subject to further confirmation proceedings on an anticipated return date. The order was appealable or subject to review proceedings to challenge its propriety.

The Merits

26. The decision of the Labour Court of 3 June 2025 under LCH 478/25, was impugned on review on the grounds of lack of jurisdiction to grant the stay of execution and gross procedural irregularities. The applicant's contention was that at the time that the order under LCH 478/25 was granted, there was no pending application for rescission of the default judgment. The application for rescission of the default judgment had been filed out of time without condonation having been sought.

27. The record of proceedings showed that the first respondent's application for rescission of the default judgment was dismissed after being deemed to have been abandoned. An attempt was made to have the dismissed application reinstated. The application for reinstatement itself was also dismissed for having been deemed abandoned. The fact that the first respondent was aware that its application for rescission was irregular is confirmed by the letter from its legal practitioners to the registrar dated 22 May 2025. The letter reads in part as follows:

> "Kindly note that on the 15th of October 2024, Hon Kachambwa J, under LCH 870/24, gave an order condoning applicant's late filing of the instant application and directed your good office to proceed to set the matter down to the next available date, copy of which order is hereto attached.
> This order essentially overtook the decision that you made on the 8th of August 2024 dismissing the matter for abandonment in terms of Rule 46(b). Moreso, the matter could not have been dismissed because it was improperly before the court in the first place, having been filed out of the prescribed timeline." (Underlining for emphasis)

28. The court order referred to in the above letter which was intended to reinstate the dismissed application reads as follows:

"1. The application for condonation for late filing of an application for reinstatement of an application for rescission of a default judgment be and is hereby granted.
2. The application for the reinstatement of the application for rescission of default judgment filed by the Applicant is deemed to have been filed in time.
3. The registrar shall set down the application for reinstatement of the application for rescission of default judgment to the next available date.
4. There is no order as to costs."

29. The application that the first respondent herein sought to have reinstated was the application for the reinstatement of the application for rescission of the default judgment. This is the same application for the rescission of the default judgment that the first respondent had, in its letter of 22 May 2025 to the registrar, admitted to having been improperly before the court because it was filed out of time.

30. The applicant's contention is that there was no application for rescission of the default judgment to talk about in the absence of a condonation for the late filing of the application for rescission. What ought to have been placed before the court was not the application to reinstate the application for rescission, which was a nullity, but an application for condonation for the late filing of an application for rescission of the default judgment.

31. The order granted by the second respondent on 3 June 2025, which is the subject of the present application for review must be understood in the above context. That order was irregular to the extent that it sought to provide a reprieve in circumstances where there was no foundational basis at law to do so. There was nothing to stay in the absence of a valid application for rescission of judgment that justified the invoking the jurisdiction of the court to suspend execution.

32. The court agrees with the applicant's contention that there were gross procedural irregularities that justify the interference of this court on review.

Costs

33. Costs follow the event. That is the general principle. I find no reason to depart from that general principle and award costs of suit to the applicant as the successful party.

Resultantly, it is ordered that:

1. The application for review is hereby granted.
2. The decision of the second respondent suspending execution of the order under LCH 1021/23 granted by the second respondent in LCH 478/25 is hereby set aside.
3. The first respondent shall bear the applicant's costs of suit on the ordinary scale.

MUSITHU J……

Munatsi and Associates, legal practitioners for the applicant
Bonongwe & Company, legal practitioners for the 1st respondent